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Technologies of Disenfranchisement: Literacy Tests and Black Voters in the US from 1890 to 1965

By Natasha N. Jones and Miriam F. Williams

Abstract

Purpose: Largely due to the latest presidential election in the U.S., voting interference and voting technologies have come to the fore of national debates. However, deploying technologies (broadly defined) as a way of interfering with voter rights is not a new phenomenon.

Methods: In this study, we identified and located historical literacy tests (along with other related texts) that were used to disenfranchise black voters in the U.S. from 1890-1965. We conducted a critical rhetorical analysis of the documents using McCornack's (1992) deceptive messaging criteria.

Results: We found that even though the rhetorical and technical style and tone of the documents appeared to be objective and neutral, the literacy tests served as a technology of disenfranchisement, a way to oppress and marginalize, black voters.

Conclusion: We argue that texts and technologies are not always designed with goodwill in mind and texts and technologies that are complicit in supporting and promoting oppressive practices have social, cultural, embodied, and material impacts on communities. We assert that technical communicators can look for possibilities and opportunities for resisting discrimination through texts.

Keywords: Voting, Technology, Social Justice, Literacy, Historical Documents

Practitioner's Takeaway

Based on this study, practitioners can consider:

- The ways in which the texts and technologies that we design, develop, and deploy are complicit in the marginalization of groups of individuals.
- How writing style and tone in a text can play a role in obscuring oppressive practices.
- Possibilities and opportunities for designing texts as tools of resistance.

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Introduction

Over the past two years, U.S. voters and government officials have expressed concern over Russian interference in the 2016 U.S. Presidential election. As we debate the results of federal investigations into Russian interference in states' election systems and the use of Facebook and Twitter to mislead U.S. voters during the 2016 elections, it is important to reflect on the history of legal interference and interruptions in the U.S. voting process. Many of us can recall the punch card (i.e. hanging chads) problems encountered during the 2000 U.S. Presidential election. From Janice Redish's "Guidelines for Writing Clear Instructions and Messages for Voters and Poll Workers" to Karen Schriver's interviews with the Orlando Sentinel (2004) and Miami Herald (2004), technical and professional communicators have been actively involved in making recommendations to improve voting instructions and ballots. In fact, technical and professional communicators are uniquely positioned to explore the ways in which voting technologies have impacted users' abilities to participate in democratic processes.

To date, however, technical and professional communication (TPC) researchers have not explored other forms of technical communication (forms, manuals, reports) used to disenfranchise U.S. voters or resist disenfranchisement from the 1890s until the Voting Rights Act of 1965. We are aware that President Lyndon B. Johnson signed the Voting Rights Act of 1965 after civil rights activists (including Martin Luther King, Jr., John Lewis, and hundreds of protesters) marched from Selma to Montgomery, Alabama to protest Black disenfranchisement. Of course, it was during one of these marches, Bloody Sunday on March 7, 1965, that Alabama state troopers' brutal attack on civil rights protesters was televised. It is important to understand that technologies, from television to Facebook, can be deployed in ways that promote agency or reify oppression, and we should examine the historical ways that these technologies have altered the political and cultural landscape of our country. Moreover, it is important to grapple with intentional deception and harm that can be not only embedded in, but be the sole purpose for, the design and implementation of some texts and technologies.

This article uses a comprehensive definition of *election technologies* to examine two types of historical

documents: literacy tests and voter registration applications, both administered to Blacks from the 1890s to 1965 to prohibit them from voting in U.S. elections. These texts were designed to intentionally confuse and prohibit prospective Black voters from exercising their rights. We assert that literacy tests function as technologies deployed with the goal of maintaining and enforcing White supremacy and controlling Black citizens' ability to exercise their rights to vote. We build on the work of TPC scholars (Stanley, 1995; Haas, 2007; Banks, 2006; Haas, 2012), who acknowledge a more holistic and inclusive definition of technologies and posit that technologies are often deployed as a way to preserve and maintain oppressive power structures while simultaneously devaluing the significance of technologies that subvert or resist Western, White, and patriarchal ideals of what constitutes a technology. As Haas (2012) notes, "race affects the ways in which technologies and documents are designed and used, how national and political values can inspire users to transform the work of technologies beyond their designed intent" (p. 281). Moreover, Haas reminds us that "technologies are not transparent things"; instead, technologies are "cultural artifacts imbued with histories and values that shape the ways in which people see themselves and others in relation to technology" (p. 288). We examine the ways in which these texts as technologies (a cultural historical tool integral to the accomplishment of a specific goal) are designed and how they are used to exclude. The function of these texts is, technologically speaking, just as important as the text themselves, because "technology is not just what does the work, it is the work" (Haas, 2012, p. 291). Thus, we examine the form and function of voter registration documents. Although we understand that many of these historical documents are written in plain language and have fairly reader-friendly document design, we aim to unveil the strategies (textual and visual) used to purposefully disenfranchise Black voters. Further, we trouble the ideal that technology empowers and enhances agency. Our study asks: In what ways do the literacy tests serve as a tool of oppression and disenfranchisement? What strategies did literacy test writers use to confuse readers in what appeared to be clear and well-designed documents? Finally, what are the contemporary implications for understanding the role that these historical texts as technologies play in the disenfranchisement of Black

voters? By examining historical literacy tests and voter registration applications, this study will unveil strategies that Southern states and counties used to disenfranchise voters, and it will also highlight civil rights activists' use of technical communication (i.e. manuals and reports) to help Blacks resist opposition at the polls.

A Critical Focus: Texts and Technologies as Sites of Oppression

Communication studies scholars (McCornack, 1992; Scholl & O'Hair, 2005; Cole, 2014; McCornack et al., 2014) conducted research on information manipulation theory and intentionality in deception. McCornack (1992) summarized deceptive messages as falling into the following categories: "manipulating the amount of information disclosed, distorting the information that is disclosed, presenting the information as equivocal fashion, and /or presenting information that is irrelevant to the preceding discourse" (p. 4). Information manipulation theory explains intentionally deceptive messaging as a covert violation of audience expectations in relation to information quantity, quality, manner, and relevance (McCornack, 1992, p. 6). Technical communication scholarship, when wrestling with communication that fails the audience, has been mostly concerned with well-meaning and unintentional mistakes in technology, text, graphics, and document design. While the general perception that communicators and designers have their users' best interests at heart can be a positive and productive starting point, an acknowledgement of more sinister and cynical purposes for communication design is also necessary. Katz (1992) helps technical communicators begin to understand that although communication documents and technologies can appear benign, interrogating authors' underlying motivation and ethical stances can reveal harm. Katz notes "technical writing, perhaps even more than other kinds of rhetorical discourse, always leads to action, and thus always impacts human life" (p. 259). In this way, technical communication is not neutral or apolitical (Williams, 2013). In fact, technical communication is often imbued with the values and assumptions of its writers and society at large, often complicit in "preserving inequitable power structures" (Rose & Walton, 2015, para. 5). A number of scholars in technical and professional communication have expanded on Katz's work revealing the oppressive potential of technical

documents that seek to achieve efficiency rather than consider the impact of the communication on the lived experiences of others. For example, scholars such as Jones, Walton, and Moore (2017) and Scott, Longo, and Wills (2006) have emphasized the ways in which technical communication has been complicit in oppression and helped to sustain oppressive conditions. As such, examinations of how and why design of texts and technologies can be, have been, and are used for nefarious purposes must also be considered a viable and important focus of TPC research, pedagogy, and practice.

This more critical eye toward intentional harm and deception in texts and technologies is beginning to be taken up due to a focus on social justice in technical communication. Because the implications about the impact that the design of texts and technologies have on the human experience is becoming an issue that more and more scholars in TPC are taking up, the field of TPC is seeing an uptick in scholarship that engages with issues of social justice, human and civil rights, and oppression and empowerment (Haas, 2012; Walton & Jones, 2013; Ding & Savage, 2013; Agboka, 2014). More recently, a select few technical communicators have begun to specifically emphasize the ways in which texts and technologies have been intentionally deployed and implemented in oppressive ways, particularly in regard to race and ethnicity. For example, Williams (2010) examines the use of Freedman's Bureau reports to document purposefully deceptive labor contracts written to bind recently freed Black slaves into apprenticeships. Williams reveals that these labor contracts, which forced Black children to work for free and remain employed with the same landowner until adulthood, were legally enforced under Black codes. During Reconstruction, Black livelihood and citizenship were aggressively attacked by Black codes, Southern laws that codified discrimination in all areas of Black life. While Black codes were written in a manner that appeared to be racially neutral, the implementation of the codes were written to regulate Black labor. These Black codes are only one example of texts designed to disempower.

In addition to Williams, Walton (2016) reminds TPC scholars of the need to focus on human rights and human dignity in technical and professional communication research and practice. If we are to answer Walton's call, a focus on human rights and dignity necessitates an awareness of the ways in which

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technologies can strip away dignity and agency from individuals and populations, including racial minorities. Other scholars have called for specific attention to issues of how technical communication interfaces with race and ethnicity (Williams, 2010; Haas, 2012; Williams & Pimentel, 2014). Further, Walton (2016) notes that because design influences culture, TPC must be concerned with how values (including those surrounding issues of race and ethnicity) are enacted and embedded, “a weighty responsibility that would be well informed by *explicitly* prioritizing human rights and human dignity” (p. 410, emphasis added). Walton’s call is urgent:

I would argue that it is now an especially kairotic moment to engage in scholarship that combats exploitative oppression and violent oppression . . . With our field’s longstanding connection to technology (Dobrin, 1983), technical communication could be—arguably, has been and continues to be—implicated in exploitation if the documents and policies we craft perpetuate systems in which the work of the have-nots serves to maintain the authority, wealth, and power of the haves. (p. 412)

Indeed, it is clear that a focus on human rights and human dignity cannot always assume goodwill, especially given historical and contemporary examples of racism nationally and internationally. Making clear that goodwill is not always the motivation behind the design and implementation of technologies (and texts as technologies), Winner (1980) explores whether or not artifacts have politics. Winner reminds us “it is no surprise to learn that technical systems of various kinds are deeply interwoven in the conditions of modern politics” (p. 122). He further asserts “the physical arrangements of industrial production, warfare, communications, and the like have fundamentally changed the exercise of power and the experience of citizenship” (p. 122). As Winner stresses, politics are not separate from technical systems (including communication) that enable and support power structures. The ways in which technologies are deployed and the communication surrounding those technologies are not neutral or apolitical, just as technical communication itself (as a field) is not apolitical or neutral: “Technologies are not neutral or objective—nor are the ways in which we use them” (Haas, 2012, p. 288).

Texts and technologies indeed have significant impacts on issues of human rights, power, and politics. As Winner (1980) defines politics are “arrangements of power and authority in human associations as well as the activities that take place within those arrangements” (p. 123). Now, over a year after the culturally and politically divisive Presidential election of 2016, we can track a progression of scholars interested in interrogating the impact that texts and technologies; including laws and regulations, social and digital media platforms and posts, and voting technologies; are affecting already marginalized groups in social, political, and economic ways. Looking carefully at the ways in which voter technologies have historically oppressed marginalized groups in the United States, we see how the persistent issue of race is intractably interwoven with voting laws, voting rights, and voting technologies. As we write this article, the Pennsylvania Supreme Court has recently ruled on a political gerrymandering case in the state, arguing that legislative districts drawn in the state were “aimed at achieving unfair partisan gain” while also “undermin[ing] voters’ ability to exercise their right to vote in free and ‘equal’ election” (Ingraham, 2018). While some may view our current electoral system as in a state of crisis, with gerrymandering cases and investigations into foreign interference in our Presidential election, it important to recall the long history of voter suppression in the United States. The recent use of electronic technologies to influence or interfere with the voting process in the United States was preceded by almost 100 years of legally administered literacy tests, voting instructions, and applications created to disenfranchise Blacks after Reconstruction.

Historical Background: Literacy Tests and Voter Registration Applications in the South

This section explores this history of literacy tests and voter registration applications as texts designed to purposefully disenfranchise and oppress Black voters in the United States. Literacy tests are verbal and written tests that Black people in the United States were required to “pass” before being allowed to vote. These so-called tests became popular in the southern United States after the passage of the Reconstruction Act in 1867. As Davidson (1992) notes, “Congress required as a condition for readmission to the Union that rebel states call conventions, to which blacks could be elected

as delegates, in order to devise new constitutions guaranteeing voting rights to black men" (p. 8). Of course, during this time, no women were allowed to vote. As the rebel states began to strategize new ways to work around constitutional amendments affording former slaves rights (namely, the 13th Amendment ensuring freedom from slavery and servitude, and the 14th Amendment granting citizenship and counting former slaves, previously considered 3/5ths of a person, as people equal to Whites), the idea of literacy tests began to take hold. As Davidson notes, "What the Fourteenth Amendment failed to do was explicitly prohibit vote discrimination on racial grounds" (p. 9). Further, Davidson asserts that White conservatives used all available means to disrupt and disenfranchise potential Black voters, including "discriminatory use of election structures (such as gerrymandering and use of at-large elections to prevent black officeholding), statutory suffrage restrictions" and violence (p. 9). Thus, from 1871 to 1957, there were no federal laws that opposed the administration of literacy tests in the South (Holloway, 2015).

Essentially, literacy tests capitalized on the fact that Blacks had little to no access to formal education, which prevented acquiring skills in reading and writing. According to Heather Williams, antiliteracy laws criminalized enslaved Blacks who attempted to read or write as early as 1740 (Williams, 2005, p. 13); Blacks who could read and write posed a threat to conservative Whites during the Reconstruction era. As Williams (2005) asserts, "Reading indicated to the world that this so-called property had a mind, and writing foretold the ability to construct an alternative narrative about bondage itself. Literacy among slaves would expose slavery, and masters knew it" (p. 7). It is not surprising that, even after slavery, access to reading and writing continued to be used as a way to oppress and silence. Davidson (1992) reveals that the literacy test; a test that required potential Black voters to prove a certain level of proficiency in reading, writing, and comprehension; was "the most effective barrier, aside from the ever-present threat of violence and economic reprisal in the Deep South" (p. 13). In fact, the author states that due to unequal access to education and arbitrary administration of the tests, White registrars were "a law unto themselves," locking Blacks out of the voting process (whether literate or not) while also "allowing illiterate whites to vote" (p.

13). Essentially, "literacy tests systemically incorporated a state's educational system in an era when blacks received unequal education in segregated schools" (Goldman, 2004, p. 614). Further, Riser (2010) notes that some literacy tests were administered orally by White registrars whose roles were to disenfranchise "blacks and Republicans and sometimes Populists—anyone who threatened conservative white Democratic hegemony" in the South. These registrars also used a grandfather clause that "quelled whites' fears" regarding the implementation of literacy tests that illiterate and uneducated Whites would also fail (Riser, 2010).

In addition to literacy tests, voting registration was also designed as a way to purposefully disenfranchise Black voters. Again, Davidson notes that in the case of Dallas County, Alabama (the location of the city of Selma), not only did registration only occur two days a month, but an "applicant was required to fill in more than fifty blanks on a form, write a part of the Constitution from dictation, read four parts of the Constitution and answer four questions on it, answer four questions on the workings of government, and swear loyalty to Alabama and the United States" (p. 15).

Congressman John Lewis, who marched on Bloody Sunday in Selma, Alabama, describes the Alabama voting registration process in *Across That Bridge: A Vision for Change and the Future of America*. Lewis wrote:

To register in Alabama, a person had to fill out a four-page application that was developed by the White Citizens Council, a coalition of business, government officials, and prominent citizens who collectively imposed economic sanctions against any black person who even attempted to register; they could be fired from their jobs, evicted from their homes, and foreclosed upon by banks or other lenders. The council made it easy to discover whom these folks were. Since the registration office was open only during business hours on the first and third Monday of each month, they had to ask for time off from work. In a small rural town, news travels fast. In addition the names of all applicants were published in the newspaper. As if these methods of intimidation were not discouraging enough, the council would also leak information to the Ku Klux Klan, which was prepared to injure, maim, and kill any African American attempting to vote, threatening families and damaging property

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to ensure the registrant did not try again. (Lewis, 2012, p. 45–46)

Lewis (2012) also noted the role of the grandfather clause to ensure that literacy tests and voter registration applications in the South were created to disenfranchise Blacks. The grandfather clause assured that the majority of Blacks could not vote because their grandfathers had not been able to vote. The clause “permitted anyone who could vote on January 1, 1867, and his sons and grandsons, to continue to vote without passing the required literacy test” (Goldman, 2004, p. 617). Lewis notes, “Some states used what was called a ‘grandfather clause’ to retard our progress after the Fifteenth Amendment passed,” explaining, “Anyone whose grandfather had the right to vote before the Civil War could continue to exercise that right without any impediment” (p. 45). Similar clauses were found throughout the South, including the “understanding clause,” which stated that registrars could decide if a prospective voter had enough of an “adequate” understanding in order to bypass the literacy tests (Goldman, 2004, p. 617).

These types of unofficial laws and voter registration application processes were not unique to Selma, Alabama, and were used throughout the South. Between the literacy tests and the voter registration applications, White conservatives were successful in disenfranchising Blacks in the South. “In the Deep South, however, White resistance was fierce in many areas, particularly the rural ones: average Black registration in Alabama, Georgia, Louisiana, Mississippi, and South Carolina was only 22.5 percent of those eligible. In Mississippi, a mere 6.7 percent were registered” (Davidson, 1992, p. 13). Moreover, because these literacy tests could be applied at the sole discretion of White registrars, coupled with educational disadvantages and discriminatory clauses: “Many blacks did not even attempt to register, and those that did were denied access to the ballot in numbers that exceeded the number of blacks who were actually illiterate” (Goldman, 2004, p. 620).

Methods: Researching Literacy Tests and Voter Registration Applications as Oppressive Technologies

Upon undertaking this research study, we sought out examples of literacy tests and voter registration

applications that intentionally disenfranchised Black voters during the late 1800s and early 1900s Reconstruction Era. We also sought to identify these documents as they were used through the Civil Rights Era and before the passage of the Voting Rights Act in 1965. One of the challenges of this study was locating an accessible archive of the actual documents. It is hard to determine why archives of literacy tests and voter registration applications were difficult to locate and validate. However, as Miller and Bowdon (1999) note, though archives and digitization of historical records provide access in new ways to texts and documents, there is still much concern as to who controls that access. In essence, “whoever controls access to archives controls the institutional memory of a culture,” and further, “whoever controls the editing of archival texts controls what those texts are taken to mean” (Miller & Bowdon, 1999, p. 595). Further, as asserted by Miller and Bowdon, as marginalized groups begin to cultivate, create, and maintain archives of documents that may have previously been unappreciated, undervalued, or even purposefully destroyed, “online archival research can [also] help us to develop new literacy strategies that citizens can use to challenge limitations on public access and representations of controversial issues in the public media” (p. 595). Ultimately, even though we found that locating validated examples of literacy tests and voter registration applications online was more tedious than we expected, we recognized that the scarcity of these documents in accessible archives is important to acknowledge. The scarcity of these documents emphasizes how texts and technologies can be used in rhetorically and materially oppressive ways in terms of the access and availability of texts. In this way, access to texts and technologies can be used for oppressive purposes by ignoring, burying, or making historical documents harder to access in attempts to make history more palatable.

For the purpose of our study, we were able to locate a website that included digitized versions of literacy tests and voter registration applications from the Civil Rights era. The Veterans of the Civil Rights Movement (CRMVet) website, maintained by Bruce Hartford, contains the most comprehensive collection of literacy tests and voter applications from the 1950s through 1960s. Although this website is not supported by a government agency, corporation, academic institution, or museum, the documents on this website do represent an archival collection, as defined by the Society of

American Archivist (Reitz, 2010). Hartford, a founding member of the National Writer's Union, former member of Congress on Racial Equality (CORE), and former member of Southern Christian Leadership Conference (SCLC) (www.huffingtonpost.com/author/bruce-hartford), describes the website as follows:

We ain't neutral. We make no pretense of academic "neutrality." We were freedom riders, and most of us remain so. This is our website where we speak for ourselves in our own voices. Therefore, all substantive material regarding the Freedom Movement on the CRVMVet site is from or by Movement veterans – as opposed to reporters, book authors, or other observers. This is not to disrespect them, but they have available many outlets and public venues for their work. We want this, our website, to reflect our point of view. (www.crmvet.org/about1.htm)

Although much of the site includes commentary on the civil rights movement, we used the website as a resource for government reports, CORE manuals, references to state and federal laws, and example literacy tests and voter applications. One example from the CRVMVet website is an Alabama literacy test and voter application form, as shown in Figures 1–4. The Application for Registration, Questionnaire, and Oaths of Alabama c. 1965, which, though four pages, is similar in scope and content to the other literacy tests on the website from Alabama, Georgia, Louisiana, Mississippi, and South Carolina. Since the Voting Rights Act of 1965 was signed the same year, this is an example of one of the last literacy tests used to disenfranchise Blacks in Alabama. Given its significance (location and timing), we use the Application for Registration, Questionnaire and Oaths of Alabama c. 1965 as a point of reference in describing the tasks users were asked to perform and the information they were asked to submit to register to vote in Alabama.

Our analysis of Figures 1–4, the Application for Registration, Questionnaire, and Oaths of Alabama c. 1965, includes two steps: Step 1) a surface-level reading of the document without consideration of McCornack's deceptive messaging criteria and Step 2) a critical rhetorical analysis of the documents using McCornack's deceptive messaging categories as criteria for analysis. Indeed, viewed in the historical context of

the Reconstruction and Civil Rights era, this reading of the texts (as oppressive and as purposely attempting to disenfranchise Black voters) was not difficult to identify. In the following section, you will find figures showing the structure and exact wording of the questions and texts on the documents. Even a surface-level reading, at the most basic rhetorical foundations, reveals the intent of the document and the authors of the text.

Textual Description of the Application for Registration, Questionnaire, and Oaths of Alabama (1965) as a Racially Neutral Document

The following section provides the findings of the surface-level reading of the voter application for registration and the associated questionnaire and oaths. The findings below are not critical but provide a basic foundational description of the form and content of each document. A critical rhetorical analysis follows the surface-level descriptions.

Part 1. Of Application for Registration, Questionnaire, and Oaths (1965)

An initial reading of Part 1 of the Alabama voter registration (see Figure 1) would remind most readers of applications organizations use to obtain basic information regarding an applicant's identity. Part 1's fill-in-the blank format questions, completed by a Board of Registrars member or an authorized clerk on behalf of the applicant, takes up about half of the first page and queries the user for information regarding 1) identity, 2) residence, 3) military experience, and 4) education. The only question that differs from most job, credit, or student applications would be the question asking, "Have you ever been registered to vote in any other state or in any other county in Alabama?" followed by "If so, when and in what state and county and, if in Alabama, at what place did you vote in such county?" This question, along with questions regarding the applicant's identity, seem like appropriate questions from a County or State organization attempting to register an applicant to vote.

Part II. Of Application for Registration, Questionnaire, and Oaths (1965)

Part II of the form begins at the halfway point on Figure 1 and concludes near the bottom of Figure 2.

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APPLICATION FOR REGISTRATION, QUESTIONNAIRE AND OATHS

PART I

This is to be filled in by a member of the Board of Registrars or a duly authorized clerk of the board. If applicant is a married woman, the name shall given under the name given in the marriage license, maiden name, and married name, which shall be indicated on the first page.

Full Name: Last First Middle

Date of Birth: Day Month Year

Business Address: Street City State

Home Address: Street City State

Living Place: Present Street City State

Length of Residence: In State County

President, ward or district

Are you a member of the Armed Forces?

Are you the wife of a member of the Armed Forces?

Are you a college student? If so, where

Have you ever been registered to vote in any other state or in any other county in Alabama? If so, when and in what state and county and, if in Alabama, at what place did you vote at each county?

Highest grade, 1 to 12, completed Where

Years college completed Where

PART II

This is to be filled in by the applicant in the presence of the Board of Registrars without witnesses.

I, _____ do hereby apply to the Board of Registrars of _____ County, State of Alabama, to register as an elector under the Constitution and laws of the State of Alabama and do hereby submit my answers to the interrogatories propounded to me by the board.

Signature of Applicant

1. Are you a citizen of the United States?

2. Where were you born?

3. If you are a naturalized citizen, give number appearing on your naturalization papers and date of issuance.

4. Have you ever been married? If so, give the name, maiden and place of birth of your husband or wife.

Are you divorced?

Figure 1. Application for Registration, Questionnaire, and Oaths of Alabama c. 1965, Page 1. Source: <http://www.crmvet.org/info/litapp.pdf>

There are instructions at the top of this section that advise the applicant to complete this section. The first portion is confirmation of the applicant's intention to "submit my answers to the interrogatories propounded to me by the board" or to officially, under the authority of the Alabama Constitution, apply to vote in the state. There is also a stamp of the word "Montgomery," identifying this form as being administered by the Board of Registrars of Montgomery, County in Alabama. This space for a stamp suggests the form is used in more than one county in Alabama. This portion is followed by a request for the applicant's signature. The rest of Part II continues through the bottom of page 2 through page 3 and includes questions regarding 1) citizenship, 2) marital status and history, 3) residences over the past five years, 4) aliases, 5) current employment, including the name and address of current employer, 6) voter registration history, 7) detailed military history, 8) request for two references,

5. List the places you have lived the past five years, giving name of county and state.

6. Have you ever been known for any other name than the one appearing on this application? If so, state what name.

7. Are you employed? If so, state by whom. If you are self-employed, state what.

8. Give the address of your present place of employment.

9. If, in the past five years, you have been employed by an employer other than your present employer, give name of all employers and where and when in which you worked.

10. Has your name ever been stricken for any reason from any list of people registered to vote? If so, when, where, and why?

11. Have you previously applied for and been denied registration as a voter? If so, when and where?

12. Have you ever served in the Armed Forces? If so, give date, branch of service, and aerial number.

13. Have you ever been dishonorably discharged from military service?

14. Have you ever been sentenced legally to prison? If so, give details.

15. Give names and addresses of two persons who know you and can testify the statements made above by you relative to your residence in this state, county and precinct, ward or district.

16. Have you ever seen a copy of this registration application form before entering this registration office? If so, when and where?

17. Have you ever been convicted of any offense or paid any fine for violation of the law? (If so, list it. If so, give the following information concerning each fine or conviction, charge, in what court tried, fine imposed, sentence, and, if pardoned, when where, and if pardoned, when where. If fine is for traffic violation only, you need write below only the words "traffic violation only".)

Remainder of this form is to be filled out only as directed by an individual member of the Board of Registrars.

PART III

Part III of this questionnaire shall consist of one of the forms which are Insert Part III at herein below set out. The insert shall be fastened to the questionnaire. The questions set out on the Insert

Figure 2. Application for Registration, Questionnaire, and Oaths of Alabama c. 1965, Page 2. Source: <http://www.crmvet.org/info/litapp.pdf>

9) a question asking if the applicant had seen "a copy of this registration form before today" and when, and 10) a criminal history question, including traffic violations.

Part III. of Application for Registration, Questionnaire and Oaths (1965)

Part III of the form is written in very small text (smaller text than the rest of the form), so we will include the text of this portion of the application, which is located at the very bottom of Figure 2. Part III reads:

(Remainder of this form is to be filled out only as described by an individual member of the Board of Registrars.)

Part III of this questionnaire shall consist of one of the forms which are Insert Part III at herein below set out. The insert shall be fastened to the questionnaire. The questions set out on the Insert

shall be answered according to the instructions therein set out. Each applicant shall demonstrate ability to read and write as required by the Constitution of Alabama, as amended, and no person shall be considered to have completed this application, nor shall the name of any applicant entered upon the list of registered voters of any county until after such Inserted Part III of the questionnaire has been satisfactory completed and signed by the applicant.

Here, it appears that the reader, while in the presence of a registrar, is given an inserted page and required to insert/attach that page to the rest of the application. Based on the text of Part III, we assume the following: 1) the content of Part III is not static and changes from applicant to applicant, and 2) the purpose of Part III is to test the applicant's ability to read and write. At the top of page 3, there are about three inches

of white space reserved for the applicant's answers to the Insert from Part III of the application; the dedicated space is noted by "PLEASE INSERT PART III HERE."

Part IV. of Application for Registration, Questionnaire, and Oaths (1965)

Part IV, located directly below the space reserved for the Part III Insert, is at the top of Figure 3 and is the first section of the application that includes a section header, Oaths. Here, the applicant is given text (an oath) to swear that their answers given thus far are true, allegiance to the Alabama Constitution, and "[they are] not affiliated with any group or party which advocates the overthrow of the United States or the State of Alabama." The second portion of Part IV is titled "Explanation and Remarks" and is reserved for comments from registrars regarding applicants who are "physically handicapped" or who have "sight handicaps" and/or other clarifications for applicants unable to complete the form.

Part V. of Application for Registration, Questionnaire, and Oaths (1965)

Part V, titled "Action of the Board," is located on the top half page 4 of the application. (See Figure 4.) This section requires signatures of members of the board of registrars signifying their approval or rejection of the applicant's voter registration application. This section notes, "The act of actually determining an applicant entitled to be registered is judicial. A majority of the board must concur. A majority must be present. The power cannot be delegated. Each member must vote on each applicant. Not until this is done may a certificate be issued the applicant."

Part VI. of Application for Registration, Questionnaire, and Oaths (1965)

The final section of the application in Figure 4, Examination of Supporting Witness, is a fill-in-the-blank series of questions requiring the name, address, and polling place, and provides support or reference for the applicant. The instructions for this section state that the witness is placed under sworn oath and the oath is administered by a registrar or authorized substitute. This section requires signatures of both the witness and the person administering this final portion of the application.

Figure 3. Application for Registration, Questionnaire, and Oaths of Alabama c. 1965, Page 3. Source: <http://www.crmvet.org/info/litapp.pdf>

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Figure 4. Application for Registration, Questionnaire, and Oaths of Alabama c. 1965, Page 4. Source: <http://www.crmvet.org/info/litapp.pdf>

Critical Rhetorical Analysis of the Application For Registration, Questionnaire, and Oaths of Alabama (1965)

In our critical rhetorical analysis of the Application for Registration, Questionnaire, and Oaths of Alabama c. 1965, we used the information manipulation theoretical framework to identify textual and visual elements that served as intentional and covert violations of the Black prospective voter's expectations in relation to the quantity of information provided or requested, quality of information provided or requested, manner in which information was provided or requested, and relevance of information provided or requested (McCornack, 1992, p. 6). Table 1; Results of Rhetorical Analysis of the Application for Registration, Questionnaire, and Oaths of Alabama; highlights elements of the document written and designed to facilitate disenfranchisement of prospective Black voters:

Parts I-VI of the Application for Registration, Questionnaire, and Oaths of Alabama appear somewhat straightforward without the testimonies of activists who studied and observed the actual consequences of submitting what seemed like harmless information (i.e. employment information, questions regarding if applicants had attempted to register to vote before, home addresses). However, in practice, this information was used as a form of surveillance (quite literally a way to identify and track Black citizens involved in voting rights and Black citizens seeking to exercise their rights to vote) and intimidation. Like Black codes and Jim Crow laws, which appeared racially neutral (Williams, 2010), literacy tests and voter application served as a completely different means of data collection for boards of registrars. McCornack's (1992) information manipulation theoretical framework helps us to understand how Black applicants who attempted to register to vote were deceived in the quantity of information, quality of information, manner of information, and relevance of the information provided (and solicited) in oral and written communication. Registrars solicited more personal information from Blacks than Whites, Blacks were not informed of how this information was actually used, questions posed to Blacks regarding the Constitution were more rigorous than information required from White applicants, and information requested from Blacks had little to do with the voting process. In this way, the application for registration form and registration process are examples of information manipulation or intentional deception.

Moving Forward and Pushing Back: Technical Communication as Tools of Resistance

As detailed above, texts and technologies deployed with the express intent of oppressing and disenfranchising was a reality that impacted Blacks desiring to vote in very real and material ways. These texts are illustrative of technical communication that functions as tools of oppression. However, in the most oppressive of times, networks of individuals, activists, and agitators develop ways to resist dominance. In 2016, with the election of our 45th President, the United States experienced a swell of groups whose sole purpose was to resist changes being implemented in the government that were seen as discriminatory, biased, racist, sexist, and

xenophobic. Perhaps some of the most vociferous resistance has come from those already marginalized. For example, groups like Black Lives Matter, an activist organization created by three Black, queer women in 2013 after the death Trayvon Martin, an unarmed Black teenager in central Florida, became more visible and vocal about the need to protect Black lives in every aspect (social, cultural, political, and embodied). However, it is important to note that resistance is not new and has been happening as long as oppression has occurred (for example, see Epps-Robertson, 2015). In fact, marginalized communities have a long history of subverting and working around texts and technologies deployed as tools of oppression.

During Reconstruction and the years following, in which literacy tests and voter registration applications were prevalent, activists worked to find ways to circumvent discriminatory laws and practices, often resulting in organizations creating their own texts. For example, the Congress of Racial Equality (CORE), made up of an interracial group of primarily young college student-activists, was established in Chicago in 1941 with the purpose of encouraging “personal nonviolent direct action to end discrimination” (Rich, 1965, p. 113). Initially, CORE chapters formed in 19 cities across the US and in the 1960s initiated Freedom Rides to southern states (Purnell, 2013). In the mid 1950s, CORE had turned its attention to the issue of voting and, by the mid 1960s, had facilitated registration of 31,000 Black voters in South Carolina within two years (p. 117). Despite localized efforts in South Carolina and other states, CORE’s resistance was to national and federally sanctioned and supported oppression. Rich notes that the work CORE was doing in 1965 was “an outgrowth of the effort to defeat Goldwaterism” (p. 117). Goldwaterism, derivative of the name of the conservative Republican Barry Goldwater, was marked by a desire to continue segregation in the United States and halt the passage of the Civil Rights Act of 1964. In other words, CORE sought to resist racist politics and policies by working around the voter registration laws of the time. In their resistance, CORE used texts designed to empower and provide disenfranchised Black voters with the information they would need to circumvent racist policies.

CORE organizations were established in a number of states in the US, both north and south. In Southern states, some CORE organizations created their own

form of technical communication in order to subvert voting restrictions and regulations. For example, a CORE group in Louisiana created booklets for Black voters to help educate them on voting process and policies (<http://www.crmvet.org/info/la-vr-training.pdf>), as in Figure 5. These booklets were created despite a “serious shortage of paper (and money)” (<http://www.crmvet.org/info/la-vr-training.pdf>). The booklet discussed how registration worked, and explained voting qualifications and disqualifications, and party affiliations. Designed as an educational tool, the booklet provided tutorials and then followed up with a quiz-style questionnaire page that allowed potential voters to test what they had learned in the proceeding lessons. Essentially, CORE created its own technical communication in an act of resistance to texts used as tools of oppression.

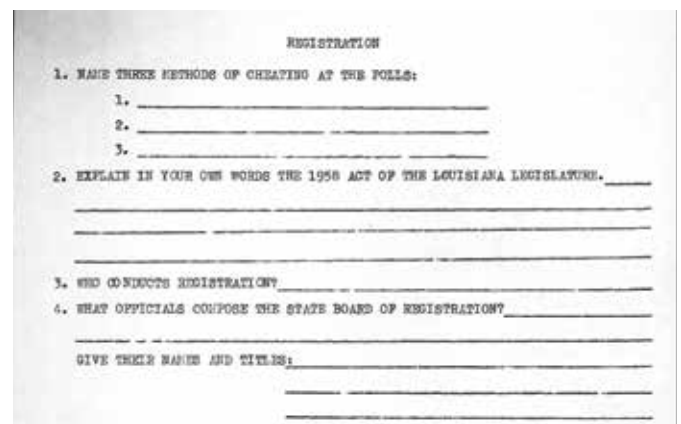


Figure 5. Louisiana CORE manual. Source: <http://www.crmvet.org/info/la-vr-training.pdf>

A voter registration manual from Georgia is even more forthright and direct in its assertion that the goal of the document is to organize disenfranchised citizens and win the right to vote. In fact, the Georgia manual focused on project planning and coordinating meetings and groups in order to help organize citizens. For example, the Georgia manual, part of which is shown in Figure 6, includes notes about how to run a meeting, how to form committees, and shows hand-drawn maps, outlining voting districts. By informing potential voters of how voting processes work, including how districts are geographically located, these manuals served as teaching tools for Black citizens aiming to exercise their right to vote. The manual is an example of technical communication developed and distributed

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Table 1. Results of Critical Rhetorical Analysis of the Alabama Application for Registration, Questionnaire, and Oaths of Alabama

	Part I	Part II	Part III
Quantity (amount of information)	Although it is obvious that the application is administered by members of the Board of Registrars or their representative, the form does not include a logo or stamp referencing the body responsible for creating the document.	This section contains 17 questions, many of which are followed by “if so” prompts that require recollection of dates, names, locations, and requests for “details” and/or “why” responses that may require the applicant to return home to gather additional information.	The amount of text from the Constitution that the reader is required to read and write is provided in person, is not static, and may change based on the applicant and administrator.
Quality (usefulness of information)	Questions regarding applicants’ previous voting records were used to identify Black voters who had attempted to vote in other counties and, despite being denied, continued to pursue voting rights.	Questions regarding residence and employment were used as a means of surveillance and to intimidate Black voters and workers whose landlords or employers were opposed to Black voting rights. They could lose their homes and jobs if they persisted in attempts to register. Questions regarding whether the applicant had seen the application before were attempts to identify Blacks who had received voting rights training from civil rights groups.	The difficulty level and legibility of the Constitution that the reader is required to read and write is provided in person, is not static and may change based on the applicant and administrator.
Manner (tone and presentation of information)	Presented as racially neutral but not administered to White Alabama residents who were exempt from literacy tests through a “grandfather clause.”	Presented as racially neutral but not administered to White Alabama residents who were exempt from literacy tests through a “grandfather clause.”	Presented as racially neutral but not administered to White Alabama residents who were exempt from literacy tests through a “grandfather clause.”
Relevance (appropriateness of information)	Questions prompted applicants for information regarding educational level, which had no bearing on voter registration.	Of the 17 questions in this section, questions regarding marital status, history of employment, and requests for references “to verify the statements made above” were inappropriate and unfair requirements.	Requesting that Black prospective voters demonstrate the ability to read and write parts of the United States Constitution, while exempting illiterate Whites, is evidence that literacy was an inappropriate and unfair requirement.

	Part IV	Part V	Part VI
Quantity (amount of information)	The Explanation and Remarks section of Part IV section was used by Board members to comment on 'blind or otherwise' handicapped' applicants and to explain what methods the Board used to determine literacy in these cases. While this section appears to collect an important amount of information for the sake of inclusivity, it also serves to reinforce the racially neutral and fair tone of the document.	In small font, the document states "NOTE: The act of actually determining an applicant entitled to be registered is judicial. A majority of the board must concur. A majority must be present. The power cannot be delegated. Each member must vote on each applicant. Not until this is done may a certificate be issued the applicant." There is no statement regarding how often the board convenes, how long an applicant must wait for a decision, or mention of an appeals process.	This section is administered by the Board to a witness speaking on behalf of the applicant. The signatures of the Board member (or their authorized agent) as well as the witness is required. The document does not reference any conditions/stipulations regarding who may or may not serve as a Board member or a witness.
Quality (usefulness of information)	The required reading of the "Oaths" section of Part IV requires that the applicant affirm allegiance to the country and state and confirm that they are not affiliated with groups or parties that might "overthrow" the United States or the State of Alabama. During this period, civil rights activists' attempts to resist Jim Crow laws were met with government-supported violence, a reaction to attempts to change the status quo.	In practice, Boards were known to delegate as few as two days a month to administering voting applications. If there were not enough board members present to sign and approve the application on the few days devoted to administering forms, applicants were unable to complete the application process.	Although this section does not appear arduous if read to the witness by the Board member, there is no mention of whether the witness needed to be a registered voter. In situations where there were few Black registered voters, it would prove difficult for Black applicants to obtain a White witness willing to sign on their behalf.
Manner (tone and presentation of information)	Presented as racially neutral but not administered to White Alabama residents who were exempt from literacy tests through a "grandfather clause."	Presented as racially neutral but not administered to White Alabama residents who were exempt from literacy tests through a "grandfather clause."	Presented as racially neutral but not administered to White Alabama residents who were exempt from literacy tests through a "grandfather clause."
Relevance (appropriateness of information)	Requesting that Black prospective voters demonstrate the ability to read the Oath, while exempting Whites, is evidence that this portion of the application was an inappropriate and unfair requirement.	Requesting that Black prospective voters' registration process be dependent on a majority vote of three-person Board, while exempting Whites from this process, is evidence that this portion of the application was an inappropriate and unfair requirement.	Requesting that Black prospective voters provide a witness to support their application to vote, while exempting Whites, is evidence that this portion of the application was an inappropriate and unfair requirement.

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with the express purpose of resisting state-sanctioned disenfranchisement. Epps-Robertson's (2015) study of the Free School provides another example of the ways in which marginalized populations pushed back against White supremacist laws through the use of education and instructive texts and documents. The voter registration manuals, documents, and resistance work by CORE point to not only texts and technologies as one approach for resisting but also highlight the ways in which, as Epps-Robertson notes, teaching and the texts used to support pedagogy can be "an act of activism" (p. 91).

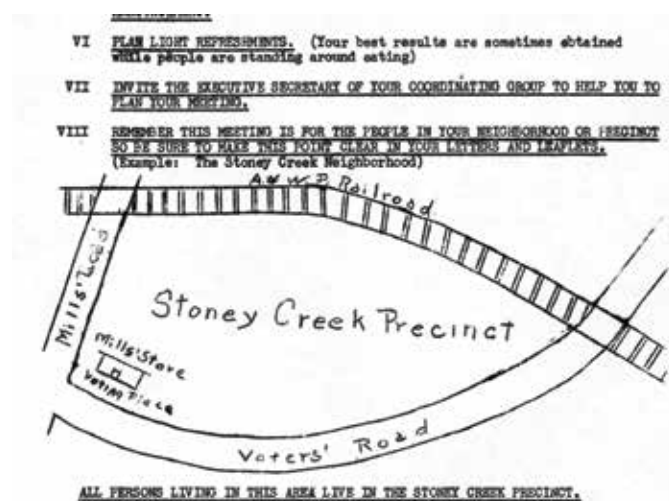


Figure 6. Page from 1962 Citizenship Clinic Manual for Georgia Voter Registration. Source: http://www.crmvet.org/info/gavr_manual.pdf

Conclusion and Implications for Technical Communication

Understanding that technical communication is not neutral or apolitical, scholars in the field have begun to explore the ways in which technical communication (scholarship, pedagogy, and practice) has been complicit in the oppression of others. Jones, Walton, and Moore (2016) assert that technical communicators must reckon with issues of power, positionality, and privilege in order to fully identify and push back against social injustice. Further, Rose and Walton (2016) acknowledge that the ways in which we use documents and technologies are also affected by unchecked bias and prejudices. In fact, Rose and Walton (2015) note the beginnings of shifts in the areas of usability and human-centered design that encourage scholars to

engage with the concept of "democratic empowerment" (Clement, 1996). This orientation asks scholars and practitioners to consider the ways in which design can reify and promote oppression and impact the lived experiences of marginalized populations. "It is oppressed people whose participation is often overlooked and, intentionally or unintentionally, prevented from informing affairs that affect them" (Rose & Walton, 2015, para 7).

An important lesson that technical communicators (in industry, government, and academia) can learn from this study is that forms and applications used in the very process of oppression and discrimination will not seem out of the ordinary. The style of writing will not read as aggressive or disrespectful, the document design will not appear unprofessional or unfamiliar, and the delivery will be incorporated into a process supported by enforceable and legitimate laws. Our challenge as technical communicators is to know how to respond if asked to write, design, or distribute information used to facilitate oppression and discrimination. Today, as we write this article, we can only imagine what types intake forms and documentation are being used to facilitate the separation of migrant children from their parents in South Texas or what documents and forms were used to support a travel ban for Muslims by the current Presidential administration. History shows us that laws, regulations, and technical and legal documents do support and enforce civil rights infringements and human rights atrocities. Examining historical documents in our field underscores the ways in which technical and professional communication can be used and have been used to uphold oppressive power structures and implement harmful and oppressive practices. It needs to be clear that technical communication is not always in service of empowerment or user-agency. Sometimes, texts and technologies are purposefully oppressive. Acknowledging that texts and technologies are not always designed with good faith or good will in mind, scholars and practitioners can begin to look for opportunities to design texts and tools for resistance. As stated above, resistance through texts and technologies is not new. As such, technical communicators must consider not only what technologies and texts are designed to do but how they are actually used in practice and how to identify the opportunities, places, and obligations to intervene.

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